

Nawal Singh @ Lovil v. State of U.P.

Allahabad High Court · Division Bench · 9 July 2014 · Writ-C No. 34657 of 2014 · **Writ disposed; EE to apply clause 6.14 and restore tubewell on compliance.**

HEADNOTE

A consumer who offered to pay electricity arrears in installments was directed to the Executive Engineer under clause 6.14 of the 2005 Electricity Supply Code. The disconnected farming tubewell was to be restored forthwith if the petitioner complied with the Engineer's installment order, having regard to drought in the State.

FACTUAL SUMMARY

Nawal Singh, a farmer, challenged recovery of electricity dues on a tubewell used for farming. In the writ petition he offered to deposit the arrears in easy installments. Counsel for the Electricity Department submitted that clause 6.14 of the 2005 Electricity Supply Code empowers the Executive Engineer to grant that facility. The tubewell stood disconnected; restoration was sought for agricultural use amid drought in the State.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for electricity dues

HOLDING

Clause 6.14 of the 2005 Electricity Supply Code empowers the Executive Engineer to extend an installment facility for electricity dues. Where the consumer offers to pay arrears in installments, the writ court will not itself grant that facility: the petitioner is to produce a certified copy of the order before the Executive Engineer, who shall within six weeks extend any benefit to which the consumer is entitled under clause 6.14. If the consumer then complies with that order, the Engineer shall restore a farming tubewell connection forthwith, having regard to drought. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A writ offering to pay electricity arrears in installments is sent to the Executive Engineer under clause 6.14 rather than decided on the merits in the High Court. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO INSTALLMENTS AND QUANTUM OF THE ELECTRICITY DUES

Left to the Executive Engineer under clause 6.14. ¶ 1